

Maneka Gandhi v. Union of India

Citation: (1978) 1 SCC 248 | Court: Supreme Court | Year: 1978

Coram: 7-Judge Constitution Bench | Subject: Constitutional Law | Provisions: Articles 21, 14, 19 & Passports Act 1967

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Overruled A.K. Gopalan (1950) by establishing that 'Procedure established by law' under Article 21 must be just, fair, and reasonable, not arbitrary or fanciful. Formulated the 'Golden Triangle' connecting Articles 14, 19, and 21 as mutually reinforcing.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 21, 14, 19 & Passports Act 1967. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 21, 14, 19 & Passports Act 1967.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Articles 14, 19, and 21 do not operate in water-tight silos. Any law depriving a citizen of personal liberty (including impounding a passport) must satisfy the equality test of Article 14, the freedom tests of Article 19, and natural justice procedural fairness.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Overruled A.K. Gopalan and imported substantive due process into Article 21.
- â€ Formulated the 'Golden Triangle' of Articles 14, 19, and 21.
- â€ Mandated post-decisional hearing and natural justice in administrative impoundments.